

Court No. - 40

Case :- WRIT - C No. - 24584 of 2022

Petitioner :- Ram Lali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vijaya Shankar Shukla

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Siddhartha Varma, J.

Hon'ble Vikas Budhwar, J.

Even though the petitioner has prayed that the electricity wires having capacity of 11000 K.V. be shifted from above his house, learned counsel for the petitioner states that the petitioner would be satisfied if the dilapidated wires be removed and be replaced by proper wires.

The Court finds that infact on 11.12.2021 the Assistant Director, Electric Security Government of U.P. Bareilly Zone Bareilly, respondent No.4, had already written in this regard to the Executive Engineer. The counsel appearing for the respondent Nos. 2 and 3 may take instructions as to why no action has been taken after the communication dated 08.12.2021 was sent to the respondent No.2.

Place the case o 12.09.2022 as fresh.

Order Date :- 29.8.2022

vkj

Court No. - 29

Case :- WRIT - C No. - 24584 of 2022

Petitioner :- Ram Lali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vijaya Shankar Shukla

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

Heard learned counsel for the petitioner; learned Standing Counsel for respondent no.1; and Sri Mukesh Kumar Singh for respondents 2 and 3.

The case of the petitioner is that an electricity line having load bearing capacity of 11000 KV is running over the house of the petitioner thereby endangering the life and property of the petitioner. The prayer of the petitioner is to command the respondents to shift the electric line.

On 29.08.2022, when the matter was last taken up, learned counsel for the petitioner stated that the petitioner would be satisfied if the dilapidated wires are removed and replaced by proper wires.

On the aforesaid statement, learned counsel for respondents 2 and 3 was required to seek instructions.

Sri Mukesh Kumar Singh, learned counsel for the respondents 2 and 3, on instructions, stated that when the team of respondent authorities visited the spot to replace the electricity wires, the petitioner resisted their action and claimed that she is interested only in removal of the wires from over her house.

Learned counsel for the respondents 2 and 3 submitted that for replacement of wires under clause 4.45 of the U.P. Electricity Supply Code, 2005, expenses can be charged. Consequently, for replacement of the wires an estimate of Rs.14,10,784/- has been prepared and if the petitioner deposits that amount, the same can be done.

Learned counsel for the petitioner submits that a licensee has no right to take wires from over a building or property and if they do so they have to compensate the owner of the property.

After having noticed the grievance of the petitioner, we are of the view that the petitioner has an alternative remedy available under the Works of Licensees Rules, 2006 framed under the Electricity Act, 2003.

Rule 3 of the Works of Licensees Rules, 2006 provides as follows :-

"3. Licensee to carry out works.—3. Licensee to carry out works.—

(1) A licensee may—

(a) carry out works, lay down or place any electric supply line or other works in, through, or against, any building, or on, over or under any land whereon, wherever or whereunder any electric supply-line or works has not already been lawfully laid down or placed by such licensee, with the prior consent of the owner or occupier of any building or land;

(b) fix any support of overhead line or any stay or strut required for the purpose of securing in position any support of an overhead line on any building or land or having been so fixed, may alter such support:

Provided that in case where the owner or occupier of the building or land raises objections in respect of works to be carried out under this rule, the licensee shall obtain permission in writing from the District Magistrate or the Commissioner of Police or any other officer authorised by the State Government in this behalf, for carrying out the works:

Provided further that if at any time, the owner or occupier of any building or land on which any works have been carried out or any support of an overhead line, stay or strut has been fixed shows sufficient cause, the District Magistrate or the Commissioner of Police, or the officer authorised may by order in writing direct for any such works, support, stay or strut to be removed or altered.

(2) When making an order under sub-rule (1), the District Magistrate or the Commissioner of Police or the officer so authorised, as the case may be, shall fix, after considering the representations of the concerned persons, if any, the amount of compensation or of annual rent, or of both, which should in his opinion be paid by the licensee to the owner or occupier.

(3) Every order made by a District Magistrate or a Commissioner of Police or an authorised officer under sub-rule (1) shall be subject to revision by the Appropriate Commission."

A perusal of the second proviso to sub-rule (1) of Rule 3 would reflect that if at any time, the owner or occupier of any building or land on which any works have been carried out or any support of an overhead line, stay or strut has been fixed shows sufficient cause, the District Magistrate or the Commissioner of Police, or the officer authorised may by order in writing direct for any such works, support, stay or strut to be removed or altered.

Sub-rule (3) of Rule 3 provides that every order made by a District Magistrate or a Commissioner of Police or an authorised officer under sub-rule (1) shall be subject to the revision by appropriate Commission.

In view of the above, we deem it appropriate to dispose off

this petition by giving liberty to the petitioner to invoke the aforesaid provisions and make an appropriate representation before the District Magistrate, Bareilly. If any such representation is submitted by the petitioner, the District Magistrate concerned shall, after giving opportunity of hearing to the licensee, pass an appropriate order in accordance with law.

With the aforesaid liberty, the petition stands **disposed off**.

Order Date :- 27.9.2022.

Rks.